

DEPARTMENT C33 LAW AND MOTION
Judge Sandy N. Leal

These are the Court's tentative rulings. They may become orders if the parties do not appear at the hearing. The Court also might make a different order at the hearing. (*Lewis v. Fletcher Jones Motor Cars, Inc.* (2012) 205 Cal.App.4th 436, 442, fn. 1.)

If counsel wish to submit on the tentative ruling, please call the Court Clerk (657-622-5233) to notify the Court that ALL parties are submitting on the tentative and no appearance will be necessary. The tentative will then become the final ruling. If no one appears at the hearing the tentative will be the final ruling. Either side may appear and argue the Court's tentative ruling.

PREVAILING PARTY SHALL GIVE NOTICE OF THE FINAL RULING TO EACH PARTY and PREPARE AN ORDER/JUDGMENT FOR THE COURT'S SIGNATURE IF THE MOTION IS DISPOSITIVE OF A PARTY OR THE CASE.

All appearances are now IN PERSON OR ZOOM.

APPEARANCES: Department C33 is currently participating in the Online Check-in/Zoom Pursuant to Administrative Order No. 21/07 for non-evidentiary hearings, including law and motion. All counsel and self-represented parties appearing for such hearings must check-in online through the Court's civil video appearance website at <https://www.occourts.org/media-relations/civil.html> prior to the commencement of their hearing. No in-person appearances will be permitted without a further order of the court upon a showing of good cause. Once the online check-in is completed, counsel and self-represented parties will be prompted to join the courtroom's Zoom hearing session. Participants will initially be directed to a virtual waiting room while the clerk provides access to the video hearing. Check-in instructions and instructional video are available on the court's website.

PUBLIC ACCESS: In those instances where proceedings will be conducted only by remote video and/or audio, access will be provided to interested parties by contacting the courtroom clerk, preferably 24 hours in advance. No filming, broadcasting, photography, or electronic recording is permitted of the video session pursuant to California Rules of Court, rule 1.150 and Orange County Superior Court rule 180.

You must provide your own remote court reporter (unless you have a fee waiver and request one in advance).

TENTATIVE RULINGS ON LAW & MOTION MATTERS

IN PERSON OR ZOOM APPEARANCES

Date: September 21, 2023 – 10:00 a.m.

#	Case Name	Tentative
1	2022-01268902 <i>Lin vs. Animal Services Center</i>	OFF CALENDAR
2	2022-01283882 <i>Chernichovski vs. Evloev</i>	Application for Right to Attach Order/Write of Attachment Plaintiff Michael Chernichovski's Unopposed Application for Right to Attach Order is GRANTED. As an initial matter, the Court notes that Defendant Ruslan Evloev was not served. Defendant is not required to be served because he is

		in default. (Code Civ. Proc. § 1010; see <i>Sporn v. Home Depot USA, Inc.</i> (2005) 126 Cal.App.4th 1294, 1301.) Attachment is a prejudgment remedy that allows a creditor to have a lien on the debtor's assets until final adjudication of the claim sued upon. (Code Civ. Proc. § 481.010, et seq.) Upon filing of the complaint, or at any time thereafter, the plaintiff may apply for a right to attach order ("RTAO") & writ of attachment by filing an application with the court in which the action is brought. (Code Civ. Proc. § 484.010.) In the discretion of the court, the amount to be secured by the attachment may include estimated costs and allowable attorney's fees. (Code Civ. Proc. §§ 482.110 & 483.015.) The court may only issue a RTAO if it finds the following: (1) The claim upon which the attachment is based is one upon which an attachment may be issued - i.e., the claim is: (a) for money based on contract; (b) of a fixed or readily ascertainable amount not less than \$500; (c) either unsecured or secured by personal property; and (d) against an individual, that the claim arises out of the conduct by the individual of a trade, business, or profession.; (2) The plaintiff has established the probable validity of the claim upon which the attachment is based.; (3) The attachment is not sought for any purpose other than the recovery on the claim upon which the attachment is based.; (4) The amount secured by the attachment is greater than zero. (Code Civ. Proc. §§ 483.010 & 484.090.) Here, the claim is based on a breach of contract of a fixed amount not less than \$500, which is unsecured. (Compl. ¶¶ BC-2.) As previously noted, the amount sought to be secured is \$233,295.50. (Application, ¶ 8.) Plaintiff establishes the claim is on upon which an RTAO may be based; Plaintiff has established the probability of the claim; the attachment does not appear to be sought for any purpose than the recovery on the claim which the attachment is based; and the amount secured by the attachment is greater than zero. (Chernichovski Decl. ¶¶ 2-9; Exs. A and B thereto.) Based on the foregoing, the Court GRANTS Plaintiff Michael Chernichovski's Unopposed Application for Right to Attach Order.
3	2021-01194029 <i>Davidson vs. The Boeing Company, Inc.</i>	OFF CALENDAR
4	2023-01318221 <i>Flint vs. Sun Haven Care, Inc.</i>	Demurrer to Complaint Defendants Sun Haven Care, Inc. dba Terrace View Care Center, NAHS Southeast, Inc. and NAHS Holding, Inc.'s Demurrer to the Complaint is SUSTAINED without leave to amend as to the first cause of action and otherwise OVERRULED.

Defendants demur to the first and fourth causes of action of the Complaint filed by Rebecca Flint, individually and as heir and successor-in-interest to Priscilla Florez, deceased.

First Cause of Action: Negligence

Defendants argue that the first cause of action is barred by the statute of limitations in Code of Civil Procedure section 340.5 for professional negligence.

Plaintiff's Opposition concedes that the first cause of action is barred by the statute of limitations. (Opposition, 2:19-20.) Therefore, because Plaintiff concedes as to this cause of action, the demurrer to this cause of action is SUSTAINED.

Because Defendants demur based on the statute of limitations and Plaintiff concedes that it is time-barred, the Court sustains the demurrer without leave to amend as there is no reasonable possibility that the defect can be cured by amendment. (see *Lueras v. BAC Home Loans Servicing, LP* (2013) 221 Cal.App.4th 49, 69.)

Fourth Cause of Action: Wrongful Death

Defendants demur to the fourth cause of action for wrongful death on the grounds that it is barred by the one-year statute of limitations in Code of Civil Procedure section 340.5. (Demurrer, 3:13-16.)

In Opposition, Plaintiff argues that the two-year statute of limitations applies because the wrongful death cause of action is based on the Complaint's allegations of elder abuse.

In reply, Defendants argue that pursuant to *Quiroz v. Seventh Avenue Center* (2006) 140 Cal.App.4th 1256 (*Quiroz*), a one-year statute of limitations applies to Plaintiff's claim for wrongful death because it is to be distinguished from Plaintiff's elder abuse claim, which carries a two-year statute of limitations as a survivorship action.

Code of Civil Procedure section 340.5 provides in part: "In an action for injury or death against a health care provider based upon such person's alleged professional negligence, the time for the commencement of action shall be three years after the date of injury or one year after the plaintiff discovers, or through the use of reasonable diligence should have discovered, the injury, whichever occurs first."

Further, Code of Civil Procedure section 340.5 gives the following definition for professional negligence: "(2) "Professional negligence" means a negligent act or omission to act by a health care provider in the rendering of professional services, which act or omission is the proximate cause of a personal injury or wrongful death, provided that such services are within the scope of services for which the provider is licensed and which are not within any restriction imposed by the licensing agency or licensed hospital."

In contrast, Code of Civil Procedure section 335.1, simply states "[a]n action for assault, battery, or injury to, or for the death of, an

individual caused by the wrongful act or neglect of another” shall be brought within two years.

Here, the fourth cause of action incorporates the previous causes of action and alleges that “as a direct result of the foregoing conduct,” decedent died on May 17, 2021, “depriving her family, including Plaintiff, of the society and companionship, affection, moral support, love, care and comfort she provided, including the ability to share and express love as they provided care to Priscilla Florez.” (Complaint, ¶¶ 69, 70.)

Benun v. Superior Court (2004) 123 Cal.App.4th 113, cited by the Opposition (Opposition, 7:1-7) provides an explanation for which statute of limitations applies to a wrongful death claim. The Court in Benun, while citing Delaney v. Baker (1999) 20 Cal.4th 23, explained: “Delaney makes clear that a cause of action for custodial elder abuse against a health care provider is a separate and distinct cause of action from one for professional negligence against a health care provider.” (Id. at 124.) Thus, the Court in Benun concluded: “The Code of Civil Procedure section 335.1 statute of limitations (applicable to causes for ‘assault, battery, or injury to, or for the death of, an individual caused by the wrongful act or neglect of another’) is facially applicable to elder abuse actions and provides a two-year limitation period...” (Id. at 125-126.)

While Defendants’ reply cites Quiroz v. Seventh Ave. Center (2006) 140 Cal.App.4th 1256 (Quiroz) to demonstrate Elder Abuse and Wrongful Death are separate and distinct claims, this authority does not support Defendants’ assertion that Code of Civil Procedure 340.5 applies.

While the Court in Quiroz does explain significant differences between claims for Elder Abuse and claims for Wrongful Death, these differences, alone, do not establish that Code of Civil Procedure section 335.1 is inapplicable.

Specifically, the Court in Quiroz explained the differences between Elder Abuse and Wrongful Death claims (namely, the parties entitled to assert them and the types of damages recoverable) for the purpose of showing that a claim for Elder Abuse did not relate back to a timely pled claim for Wrongful Death. (Quiroz, supra, 140 Cal.App.4th at 1278.)

Quiroz does not indicate that Code of Civil Procedure section 335.1 cannot apply to claims for Wrongful Death and, in fact, the issue of whether a wrongful death claim was timely pled was never considered by the Quiroz court. The Quiroz court framed the issue on appeal as: “whether an untimely pleaded survivor cause of action, through which the decedent’s successor in interest seeks damages for the decedent’s predeath injuries (and heightened remedies under the Elder Abuse Act), relates back to a timely filed cause of action for wrongful death through which the decedent’s heir seeks only compensation for her own injuries.” (Id. at 1262.)

Based the foregoing, namely Benun and the allegations of the fourth cause of action as pled, the Court finds that a two-year statute of limitations applies to Plaintiff’s wrongful death cause of action. The Complaint alleges that Plaintiff’s decedent passed away on 5-17-22

		(Complaint, ¶ 34) and the Complaint was filed on 4-10-23. Therefore, the Complaint is timely filed. Thus, Defendants' demurrer to the fourth cause of action is OVERRULED. Plaintiff is to file an amended complaint within 20 days of notice of this ruling. Defendants are to give notice.
5	2021-01198190 <i>Images Luxury Nail Lounge, Inc. vs. State of California</i>	Motion for Summary Judgement and/or Adjudication NO TENTATIVE
6	2021-01217849 <i>Jones vs. Valenzuela</i>	OFF CALENDAR
7	2023-01308368 <i>Mobile Kitchen USA, Inc. vs. Peter Vander Werff Construction, Inc.</i>	1) Application/Request 2) Motion for Change of Venue (Transfer) 1. Motion for Change of Venue (Transfer) Defendant Peter Vander Werff Construction, Inc.'s Motion for Change of Venue is GRANTED. "Where there are multiple parties and causes of action, venue may be proper in more than one county." (Rycz v. Superior Court of San Francisco County (2022) 81 Cal.App.5th 824.) Code Civ. Proc. § 396b states in pertinent part: "(a) Except as otherwise provided in Section 396a [not applicable here], if an action or proceeding is commenced in a court having jurisdiction of the subject matter thereof, other than the court designated as the proper court for the trial thereof, under this title, the action may, notwithstanding, be tried in the court where commenced, unless the defendant, at the time he or she answers, demurs, or moves to strike, or, at his or her option, without answering, demurring, or moving to strike and within the time otherwise allowed to respond to the complaint, files with the clerk, a notice of motion for an order transferring the action or proceeding to the proper court, together with proof of service, upon the adverse party, of a copy of those papers. Upon the hearing of the motion the court shall, if it appears that the action or proceeding was not commenced in the proper court, order the action or proceeding transferred to the proper court. ¶ (b) In its discretion, the court may order the payment to the prevailing party of reasonable expenses and attorney's fees incurred in making or

resisting the motion to transfer whether or not that party is otherwise entitled to recover his or her costs of action. In determining whether that order for expenses and fees shall be made, the court shall take into consideration (1) whether an offer to stipulate to change of venue was reasonably made and rejected, and (2) whether the motion or selection of venue was made in good faith given the facts and law the party making the motion or selecting the venue knew or should have known. ..."

"[I]t is the moving defendant's burden to demonstrate that the plaintiff's venue selection is not proper under any of the statutory grounds." (Fontaine v. Superior Court (2009) 175 Cal. App. 4th 830, 836.)

Code Civ. Proc. § 395 states in pertinent part: "(a) Except as otherwise provided by law and subject to the power of the court to transfer actions or proceedings as provided in this title, the superior court in the county where the defendants or some of them reside at the commencement of the action is the proper court for the trial of the action." Code Civ. Proc. § 395 further states: "Subject to subdivision (b), if a defendant has contracted to perform an obligation in a particular county, the superior court in the county where the obligation is to be performed, where the contract in fact was entered into, or where the defendant or any defendant resides at the commencement of the action is a proper court for the trial of an action founded on that obligation, and the county where the obligation is incurred is the county where it is to be performed, unless there is a special contract in writing to the contrary." (Code Civ. Proc., § 395(a).)

Code Civ. Proc. § 395.5 states: "A corporation or association may be sued in the county where the contract is made or is to be performed, or where the obligation or liability arises, or the breach occurs; or in the county where the principal place of business of such corporation is situated, subject to the power of the court to change the place of trial as in other cases."

"The plaintiff's theory of the action as set forth in the complaint determines the venue. (Eckstrand v. Wilshusen (1933) 217 Cal. 380, 381-382, 18 P.2d 931.) ... ¶ A 'mixed action' is one where the plaintiff has alleged two or more causes of action, each of which is governed by a different venue statute. ... (Brown v. Superior Court (1984) 37 Cal.3d 477, 488, 208 Cal.Rptr. 724, 691 P.2d 272.) Where the defendant is entitled to a change of venue as to one cause of action, the entire action is transferred. (Jhirmack Enterprises, Inc. v. Superior Court (1979) 96 Cal.App.3d 715, 720, 158 Cal.Rptr. 192.)" (Gallin v. Superior Ct., (1991) 230 Cal. App. 3d 541, 544-45.)

Where "two sophisticated parties agree, pursuant to arm's length negotiations, to litigate an action in one of multiple statutorily permissible venues, they should be held to their agreement." (Battaglia Enterprises, Inc. v. Superior Court (2013) 215 Cal.App.4th 309, 318.)

"Venue is determined based on the complaint on file at the time the motion to change venue is made." (Malloy v. Superior Ct. (2022) 83 Cal. App. 5th 543, 553.)

As an initial matter, the Parties agreed, as part of the agreements both parties contend are enforceable, to an express written term in the subject Agreement, that “[i]f legal action is necessary to enforce the terms and conditions of this Equipment Lease, the Parties hereby agree that the Superior Court of California, County of Orange, shall be the sole jurisdiction and venue for the bringing of such action;” (Agreement, ¶ 19.2) Thus, as long as Orange County is a “statutorily permissible” venue for all of Mobile Kitchens’ causes of action, the Motion should be denied.

Plaintiff’s First Amended Complaint, the operative complaint at the time the Motion was filed, alleges causes of action for (1) Breach of Written Contract; (2) Fraud—Intentional Misrepresentation; (3) Fraud—False Promise; and (4) Declaratory Relief.

First, regarding the contract cause of action, PVW Construction contends that all performance of the prime contract takes place in San Diego County. (Gossage Decl., ¶ 9.) The Declaration of Charles Gossage states: “The Project is located in the County of San Diego. All performance of the Prime Contract takes place in the County of San Diego.” (Gossage Decl., ¶ 9.) Additionally, PVW Construction provides that the Lease was executed by PVW at its office in San Diego County. (Gossage Decl., ¶¶ 6, 14-17.)

Furthermore, a corporation’s “residence” is where the principal place of business of such corporation is situated. (Code Civ. Proc. § 395.5.) PVW Construction’s principal place of business is its home office located at 125 West Lexington Avenue, El Cajon, California 92020, which is within San Diego County. (Gossage Decl., ¶ 6; RJN § 3.)

Mobile Kitchens (referred to as MK in their brief) contends “[v]enue for actions relating to a PVW’s contractual obligations is proper in Orange County, as the location where the contract was written, revised, signed, and partially performed and was breached by PVW for non-payment. Crommelin Decl., ¶¶ 2, 5; Ex. A, C, E.” (Opposition, 11:18-21.) The Declaration of Wendy Crommelin states: “The Lease Agreement between MK and PVW, which Mr. Gossage initially signed in October 2021 (without making any changes), was drafted by MK and made in Orange County. The contract was to be partially performed in part in Orange County, where PVW was to pay MK. Throughout the duration of the lease term, PVW has sent its payments to MK’s 2031 South Lida Lane, Anaheim, California 92802 address.” (¶ 5.)

PVW Construction concedes that Orange County is the proper venue for the contract cause of action. (Supplemental Reply, ROA 117, 4:26-27 “PVW does not dispute whether Orange County is a proper venue for MK’s contractual claims.”)

Thus, the Court finds that this is sufficient to establish that Orange County is a “statutorily permissible” venue for the breach of contract cause of action.

Second, PVW Construction contends that Mobile Kitchens’ cause of action for fraud is a transitory cause of action, meaning it can only be tried in Defendant’s County of Residence. PVW cites Sausen v. Anderton (1954) 129 Cal.App.2d 324 (Sausen) for the proposition that, a fraud cause of action such as Plaintiff’s is transitory and

defendants are "entitled upon request to have this action tried in the county of the residence of one or the other of them." (Id. at p. 326.)

Sausen states: "'* * * Such an action is not 'founded' on the contract sought to be canceled—it is not a contract action at all, but a tort action based on fraud.' See also Brown v. Happy Valley Fruit Growers, 206 Cal. 515, 274 P. 977; Howe v. Tucker, 219 Cal. 193, 25 P.2d 832; Terry v. Rivergarden Farms Co., 29 Cal.App. 59, 154 P. 476; Kaluzok v. Brisson, 27 Cal.2d 760, 167 P.2d 481, 163 A.L.R. 1308." (Id. 325-326.)

Again, PVW Construction's principal place of business is its home office located at 125 West Lexington Avenue, El Cajon, California 92020, which is within San Diego County. (Gossage Decl., ¶ 6; RJN § 3.)

Mobile Kitchens (referred to as MK in their brief) contends "MK's fraud causes of action arise out of false promises and intentional misrepresentations made in the inducement of the Agreement, and therefore directly stem from PVW's contractual obligations under the Agreement. PVW used a 'bait and switch' approach by agreeing to essential terms, and then months later, after the contract had been performed sought to unilaterally and fraudulently change the terms of the deal by purporting to strike essential and material terms. As the fraud allegations arise and go hand in hand with PVW's contractual obligations, they fall within the ambit of the forum selection clause and independent of such, under C.C.P. Section 395.5 as they arise out of the contractual obligations." (Opposition, 11:21-12:2.)

Mobile Kitchens' interpretation of the FAC is supported by the following case. "Defendant contends, however, that the second cause of action sounds in tort; that is, an action of fraud is alleged and therefore the action becomes transitory and the county of defendant's residence the only proper county for trial. An examination of the complaint clearly indicates that plaintiffs' second cause of action is for damages flowing from the breach of the contract and not for fraud. Hence the second cause of action does not defeat plaintiffs' right to have the cause tried in Nevada County. Bloom v. Carpenter, 74 Cal.App.2d 790, 169 P.2d 388." (Carse v. Zarevich, (1959) 170 Cal. App. 2d 167, 168-69.)

PVW cites Haurat v. Superior Court (1966) 241 Cal.App.2d 330 (Haurat), which concerns a conversion cause of action, which is a transitory cause of action that should be tried in the defendant's residence. Like the plaintiff in Haurat, Mobile Kitchens requests punitive damages, which PVW claims is determinative: "where the plaintiff also seeks damages of a punitive nature, his recovery is necessarily dependent upon a showing of tortious conduct on the part of defendant. In such case it cannot be said that the gravamen of the action is ex contractu and that allegations of conversion or fraud are only incidental to the recovery of secret profits. (See Hill v. Superior Court, 16 Cal.2d 527, 530-531 [106 P.2d 876]; Steiner v. Rowley, 35 Cal.2d 713 [221 P.2d 9].)" (Id. at 335.)

Haurat further states: Section 3294 of the Civil Code provides: 'In an action for the breach of an obligation not arising from contract, where the defendant has been guilty of oppression, fraud, or malice, express or implied, the plaintiff, in addition to the actual damages, may recover damages for the sake of example and by way of punishing the defendant.' The primary purpose of this limitation is to

avoid injecting questions of fraud, malice, or oppression into contract actions, since most contract breaches arise from inability to perform or uncertainty as to the scope of the obligation, and the defendant is subject to strict liability upon a showing of breach regardless of his intent. (McCormick (1935) Damages, p. 291; see Freedman v. Rector etc. of St. Matthias Parish, 37 Cal.2d 16, 22 [230 P.2d 629, 31 A.L.R.2d 1].)" (Id. at 335.)

Haurat further states: "The present pleading incorporates in Counts I and III allegations which state causes of action both ex contractu and ex delicto in nature. While the use of language such as "converted" and "misappropriated" may not necessarily be determinative, it seems clear that a complaint in which there are allegations in support of and a prayer seeking exemplary damages cannot be categorized as solely ex contractu in nature. ¶ Since the plaintiff has plead a cause of action based upon the tort of conversion, the defendant has a right to have the action tried in the county of his residence (Mason v. Buck, 99 Cal.App. 219, 221 [278 P. 461]; Spangenberg v. Spangenberg, supra, 123 Cal.App. 387, 390-391)" (Id. at p. 337)

The First Amended Complaint (FAC) alleges that Mobile Kitchens relied upon PVW Construction's representations that it would abide by the Lease Agreement, the Lease's Exhibit A, and Revised Exhibit A. (¶¶ 95-96.) The FAC also alleges that PVW Construction represented it would allow Plaintiff to enter Camp Pendleton and retake possession of the Equipment and Optional Items in the event that Defendant failed were in Default under the Lease. (¶ 97.) The FAC further alleges that PVW attempted to modify the terms of the lease unilaterally, claiming that Mobile Kitchens had no right under the Default provisions, and had no right to retake possession. (¶ 96.)

Moreover, many of the allegations regarding misrepresentations start with "As part of the Lease ... " (¶¶ 96, 97, 108, and 109.) However, some of the alleged misrepresentations were made outside of the lease. (¶¶ 103, 115.)

The FAC further alleges: "Defendant engaged in the acts alleged above maliciously, willfully, oppressively, and with the intent to harm Plaintiff. Defendant engaged in despicable conduct and acted with a conscious disregard of Plaintiff's rights and with the intent to vex, injure, or annoy Plaintiff such as to constitute oppression, fraud, or malice under Civil Code Section 3294. Charles Gossage is an officer of PVW. The acts and conduct of Charles Gossage and Pat Walls were ratified by PVW. Plaintiff is therefore entitled to punitive damages in an amount sufficient to punish and make an example of Defendant." (¶ 105) The FAC further alleges: "Defendant engaged in the acts alleged above with fraud, maliciously, willfully, oppressively, and with the intent to harm Plaintiff. Defendant engaged in despicable conduct and acted with a conscious disregard of Plaintiff's rights and with the intent to vex, injure, or annoy Plaintiff such as to constitute oppression, fraud, or malice under Civil Code Section 3294. Charles Gossage is an officer of PVW, and Pat Walls is PVW's Director of Operations. Their conduct was ratified by PVW. Plaintiff is therefore entitled to punitive damages in an amount sufficient to punish and make an example of Defendant." (¶ 117)

Mobile Kitchen also seeks punitive damages in the Prayer for Relief. (¶ 5 under "For Causes of Action No. 2 through 3.)

Based on the foregoing, Mobile Kitchens' fraud causes of action are essentially asking the Court to enforce the original Lease Agreement, the Lease's Exhibit A, and Revised Exhibit A, and ignore PVW Construction's unilaterally revised version. However, Mobile Kitchens' Request for punitive damages renders the fraud causes of action tortious because they seek damages stemming from fraud, malice, or oppression, and not as a result of a breach of contract.

Mobile Kitchens contends that Haurat is distinguishable and cites to Lifeco Servs. Corp. v. Superior Ct. (1990) 222 Cal.App.3d 331, 333-334 (Lifeco), claiming that the venue selection clause can be upheld where breach of contract and torts arising from that contract sought actual and punitive damages. However, as PVW points out in its Reply, this case is not applicable because it was a forum selection clause that the court analyzed which is a different analysis. Additionally, punitive damages was not raised in Lifeco.

Based on the foregoing, the venue selection clause cannot apply to the fraud causes of action because they seek punitive damages. "In passing upon a motion for a change of venue the court must take the pleading as it is written; its sufficiency is not before the court, and the court may not speculate upon the appearance of the complaint after it is challenged by demurrer or as it may be tested by motions to strike. [Citations.]" (Johnson v. Superior Court, supra, 232 Cal.App.2d 212, 217-218.) All ambiguities will be construed against the pleader to the end that a defendant shall not be deprived improperly of his fundamental right to have the cause tried in the county of his residence. (Bybee v. Fairchild, 75 Cal.App.2d 35, 37 [170 P.2d 54]; Kaluzok v. Brisson, 27 Cal.2d 760 [167 P.2d 481, 163 A.L.R. 1308].)" (Haurat, supra, 241 Cal.App.2d at 334.)

The only possible venue for the fraud causes of action that seek punitive damages is San Diego County. Where venue is improper as to a single cause of action the entire First Amended Complaint must be transferred. (Jhirmack Enterprises v. Superior Court (1979) 96 Cal.App.3d 715, 720.)

Based on the foregoing, the Court GRANTS Defendant Peter Vander Werff Construction, Inc.'s Motion for Change of Venue.

The Court does not award attorney fees because it finds that the Opposition was made in good faith. This ruling is without prejudice for any party to bring a motion for attorney fees once there is a prevailing party at the culmination of the case.

The Court orders this matter to be transferred to the Superior Court of California for the County of San Diego located at 1100 Union St, San Diego, CA 92101 upon payment of all the necessary fees required by law. The clerk of this court is authorized to transfer all the pleadings and papers herein to the clerk of the receiving court. If those costs and fees are not paid within 30 days after service of notice of the transfer order, the court may, on a duly noticed motion by any party, dismiss the action without prejudice.

The Order to Show Cause re: Payment of Transfer Fees is scheduled for [insert date over one month from now], 2023 at [insert time] in Department C33.

		Defendant to give notice. 2. Application for Writ of Possession Plaintiff's Application for Writ of Possession is OFF-CALENDAR. Due to the Court's granting of the Motion for Change of Venue, the Writ of Possession cannot be heard by this Court. It is taken off-calendar as moot and the parties can reschedule it once this case is transferred to San Diego. Defendant to give notice.
8	2021-01201431 <i>Pierce vs. Specialized Loan Servicing, LLC</i>	1) Motion to Compel Answers to Form Interrogatories 2) Motion to Compel Answers to Special Interrogatories 3) Motion to Compel Answers to Special Interrogatories 4) Motion to Compel Answers to Special Interrogatories 5) Motion to Compel Further Responses to Form Interrogatories 6) Motion to Compel Further Responses to Special Interrogatories 7) Motion to Compel Further Responses to Special Interrogatories 8) Motion to Compel Production 9) Motion to Compel Production 10) Motion to Compel Response to Requests for Admissions 11) Motion to Compel Response to Requests for Admissions 12) Motion to Compel Response to Requests for Admissions 13) Motion to Deem Facts Admitted • Defendant Newrez, LLC F/K/A New Penn Financial, LLC, D/B/A Shellpoint Mortgage Servicing's Motion to Compel Further Responses to Interrogatories • Defendant Newrez, LLC F/K/A New Penn Financial, LLC, D/B/A Shellpoint Mortgage Servicing's Motion to Compel Responses to Interrogatories • Defendant Newrez, LLC F/K/A New Penn Financial, LLC, D/B/A Shellpoint Mortgage Servicing's Motion to Compel Responses to Request for Production • Defendant Newrez, LLC F/K/A New Penn Financial, LLC, D/B/A Shellpoint Mortgage Servicing's Motion to Compel Responses to Request for Production • Defendant Newrez, LLC F/K/A New Penn Financial, LLC, D/B/A Shellpoint Mortgage Servicing's Motion to Compel Further Responses to Interrogatories • Defendant Newrez, LLC F/K/A New Penn Financial, LLC, D/B/A Shellpoint Mortgage Servicing's Motion to Compel Further Responses to Interrogatories • Defendant Newrez, LLC F/K/A New Penn Financial, LLC, D/B/A Shellpoint Mortgage Servicing's Motion to Compel Further Responses to Request for Admissions and Deem Admitted • Defendant Newrez, LLC F/K/A New Penn Financial, LLC, D/B/A Shellpoint Mortgage Servicing's Motion to Compel Further Responses to Request for Admissions and Deem Admitted

		On its own motion, the Court continues the above motions to 10-26-23 at 10:00 a.m. in Dept C33. The Court requests that the parties appear at the 9-21-23 hearing prepare to address the following issues: • The identity of Plaintiffs' attorney, if any, going forward. • Whether Plaintiffs stipulate that service of the motions to compel before the Court was proper • If Plaintiffs do not intend to proceed with an attorney, whether Plaintiffs consent to service by email. Pursuant to Code of Civil Procedure section 1010.6(c)(3)(ii), an unrepresented party may be served electronically if they manifest "affirmative consent through electronic means with the court or the court's electronic filing service provider, and concurrently providing the party's electronic address with that consent for the purpose of receiving electronic service. The act of electronic filing shall not be construed as express consent." If Plaintiffs state that they are agreeable to electronic service, Plaintiffs are to file a notice of consent to electronic service. Court orders Clerk to give notice.
9	2021-01218115 <i>Raggins vs. Kia America, Inc.</i>	1) Motion to Compel Further Responses to Special Interrogatories 2) Motion to Compel Production <u>Plaintiff's Motion to Compel Further Responses to Special Interrogatories</u> Plaintiffs move to compel further responses to Special Interrogatories (SPROGs), Set One, Nos. 8-24. The Motion is GRANTED as to Nos. 8-21 and DENIED as to Nos. 22-24. First, the Court notes that Plaintiffs' counsel has filed separate statements of discovery in dispute as an attachment to their motions. In future, counsel shall file any separate statement as a separate document for the Court's review. Code of Civil Procedure section 2030.300 states in part, "(a) On receipt of a response to interrogatories, the propounding party may move for an order compelling a further response if the propounding party deems that any of the following apply: (1) An answer to a particular interrogatory is evasive or incomplete. (2) An exercise of the option to produce documents under Section 2030.230 is unwarranted or the required specification of those documents is inadequate. (3) An objection to an interrogatory is without merit or too general." SPROGs 8-13 seek information about recalls involving front axles of any Kia Forte model and any Kia front-wheel drive model. Plaintiff contends Kia vehicles have had issues with fractured front axles beginning in 2001. For purposes of this motion, Plaintiff has shown that discovery related to other Kia front-wheel drive vehicles is reasonably calculated to lead to admissible evidence regarding the

existence of a defect and Defendant's notice of the defect. (Code Civ. Proc. § 2017.010; see Hasson v. Ford Motor Co. (1982) 32 Cal.3d 388, 403–404 ["The trial court plainly had a reasonable basis for admitting evidence of the numerous failures occurring in 1965 models for the purpose of showing the nearly identical 1966 models to be similarly defective."]) Defendant is ordered to provide further responses to SPROGs 8-13, limited in scope from January 1, 2001 to present.

SPROGs 14-16 seek information about complaints related to a fracture of front axles of any Kia front-wheel drive model. For the reasons stated above, Defendant is ordered to provide further responses, limited in scope from January 1, 2001 to present.

SPROGs 17-20 ask Defendant to describe the manufacturing, inspection, and testing processes regarding the axle of the 2017 Kia Forte. Defendant contends non-party Kia Corporation designs and manufactures Kia vehicles, and Defendant Kia America merely distributes them in America. While Defendant is not required to respond to discovery on behalf of a non-party, Defendant is required to provide responsive information in its possession, custody, or control. Defendant's response is evasive. Defendant shall provide further responses to Nos. 17-20.

SPROG 21 asks Defendant to identify lawsuits against it regarding a fracture of any front-wheel drive Kia model. For the reasons stated above, Defendant is ordered to provide a further response, limited in scope to January 1, 2001 to present.

SPROGs 22-24 ask whether Defendant contends the right front axle of Plaintiff's vehicle did not fracture prior to the collision and seeks information supporting Defendant's contention. Defendant has provided substantive, Code-compliant responses. The motion is denied as to Nos. 22-24 without prejudice to Plaintiff's right to seek further information regarding this issue via other discovery methods.

Defendant shall serve further responses within 30 days of this order.

Plaintiffs' request for sanctions is granted in the amount of \$7,250, payable within 30 days of this order. (Code Civ. Proc. § 2030.300(d).)

Plaintiff's Motion to Compel Further Responses to Requests for Production, Set One

Plaintiffs' motion to compel a further response to Requests for Production (RFP), Set One, No. 15, is GRANTED.

RFP No. 15 seeks, "Any and all records of each and every complaint related to a fracture of either of the front axles (e.g., constant velocity shafts) of any Kia front-wheel drive model, including the identified model involved in this action, received by YOU and/or YOUR parent entity, at any time up to the present date."

Defendant's response is limited to complaints involving the 2014-2018 Kia Forte Model served on or before August 25, 2019. However, Plaintiff has shown that discovery related to front axle

		fractures in other Kia front-wheel drive vehicles is reasonably calculated to lead to admissible evidence regarding the existence of a defect and Defendant's notice of the defect. (Code Civ. Proc. § 2017.010; see Hasson v. Ford Motor Co. (1982) 32 Cal.3d 388, 403-404 ["The trial court plainly had a reasonable basis for admitting evidence of the numerous failures occurring in 1965 models for the purpose of showing the nearly identical 1966 models to be similarly defective."]) Defendant shall serve a further response and produce responsive documents, limited in scope to January 1, 2001 to present. Defendant shall serve a further verified response within 30 days of this order. Plaintiffs' request for sanctions is granted in the amount of \$6,250, payable within 30 days of this order. (Code Civ. Proc. § 2031.310(h).) <u>Plaintiff's Motion to Compel Further Responses to Requests for Production, Sets Two and Three</u> Plaintiffs' motion to compel a further response to RFPs Sets Two and Three, is GRANTED. Plaintiffs move to compel further responses to RFP Nos. 20-23, 26, 30, and 31-41 and DENIED as to RFPs 24 and 25. RFPs 20-23, 26, 30, and 31-41 seek documents regarding potential similar defects in other Kia models. As discussed above, Plaintiffs have shown that such discovery is reasonably calculated to lead to discovery of admissible evidence. Such discovery will allow the Court to make an informed decision as to whether defects in other models were substantially similar enough to be admissible at trial. Therefore, Defendant is ordered to serve further responses and produce documents in response to RFPs 20-23, 26, 30, and 31-41, limited in scope to January 1, 2001 to present. RFPs 24 and 25 seek documents related to Defendant's marketing of the 2017 Forte, the model purchased by Plaintiffs. These RFPs are vague and overbroad and Plaintiffs have not cited legal authority supporting such broad discovery as to Defendant's marketing materials. Therefore, the motion is denied as to RFPs 24 and 25 without prejudice to Plaintiffs' ability to conduct more narrowly tailored discovery on this issue. Plaintiffs' request for sanctions is granted in the amount of \$6,250, payable within 30 days of this order. (Code Civ. Proc. § 2031.310(h).)
10	2022-01275212 <i>Snavelly Family Trust vs. Capistrano Garden Homes Homeowners Association No. 2</i>	OFF CALENDAR

11	2022-01275296 <i>Zhang vs. Zhu</i>	Motion to Compel Deposition (Oral or Written) Motion to Compel Deposition Plaintiff's Motion to Compel Deposition of Angel Pik-Chuen Lee and Production of Documents is DENIED without prejudice. California Rules of Court, Rule 3.1346 provides, "Rule 3.1346. Service of motion papers on nonparty deponent A written notice and all moving papers supporting a motion to compel an answer to a deposition question or to compel production of a document or tangible thing from a nonparty deponent must be personally served on the nonparty deponent unless the nonparty deponent agrees to accept service by mail or electronic service at an address or electronic service address specified on the deposition record." Here, the proof of service for the motion does not reflect service of the motion on the nonparty deponent by any means. The motion does not comply with Rule 3.1346 and the deponent has not received notice and an opportunity to respond to the motion. The motion is denied without prejudice to Plaintiff's ability to file a renewed motion with proper service on the deponent.
12	2017-00956655 <i>Thier vs. Farah</i>	Motion to Enforce Settlement Plaintiffs/Cross-Defendant Paul Thier, Thier Ranches, LLC and Wanda Mascia Motion to Enforce the Settlement pursuant to CCP 664.46 is DENIED in part. On 9-21-21, the parties entered into a settlement made orally before the Court. The terms of the agreement are as follows: 1. There will be an "all-inclusive document encompassing these terms" (Shaw Decl., ¶ 2, Ex. A [September 22, 2021, Trial Transcript] at 23:2-3); 2. "Clickers will be needed to gain access through that entry point at the Hamilton Gate entrance to what we call Strip 2 of the Easement" (Id. at 23:4-7); 3. "The Hickey Gate on the south part of the 25 acre will be coded" (Id. at 23:12-14.); 4. There will be an easement granted to Mr. Thier that provides for "vehicular and pedestrian, as well as equestrian rights but only as equestrian rights as [to] Strip 1, and usage for the Strip 1 for equestrian purposes is limited to 20 round trips per day" (Id. at 23:15-20); 5. The settlement document will include an indemnity and hold harmless provision (Id. at 23:21-22);

	6. The settlement document will include “an insurance paragraph much like the existing paragraph 5.2” of the May 31, 2011, easement agreement attached as Exhibit B to the Shaw Declaration (Id. at 23:23–24:1); 7. The parties agree to waive any remaining claims, including tort claims (Id. at 24:4-5); 8. Mr. Farah will pay or cause to be paid \$10,000.00 to Plaintiffs within 30 days after the full execution of the proposed settlement agreement (Id. at 24:5-8); 9. The Complaint and Cross-Complaint (that is, the entire action) will be dismissed with prejudice (Id. at 24:26–25:3); 10. The settlement document will include a mediation and arbitration provision that provides “if a party files a lawsuit without first demanding mediation . . . they waive their attorney’s fees” (Id. at 25:4-7); 11. The settlement document “will contain a [Section] 1542 waiver[] and release language provision” (Id. at 25:9-10); 12. The document that creates the above-referenced easement will be recorded in the official records of Orange County, California (Id. at 25:10-12); 13. The settlement document will include an attorney’s fee provision (Id. at 25:13-14); 14. Mr. Farah or his successors and his assigns will have the right to relocate the road just like the existing easement agreement and provide meaningful access to the same width, subject to the same access points (that is, the entry gate would not be moved, but the angle of the road could be moved) (Id. at 25:18-23); 15. Any person coming from the three-acre or 80-acre parcels must ride their horses only on the easements being granted, not on side trails, and the vehicles must always stay on the easements (Id. at 26:20-25); and 16) 16. The parties agree “to operate in good faith . . . to be able to get that insurance requirement satisfied” (Id. at 28:13-15). In opposition, Defendants do not dispute these material terms of the agreement. The issue in dispute is whether the settlement agreement can be finalized if Plaintiffs have not obtained insurance coverage required under Section 5.2 of the existing Easement Agreement and/or insurance coverage that is required before Trustee Farah is obligated to execute and record an equestrian easement in favor of Thier. Pursuant to the terms of the settlement agreement, the written settlement agreement is to include “an insurance paragraph much like the existing paragraph 5.2 . . . [of] the May 31, 2011, Easement Agreement between Trabuco Canyon Company and Thier.” (Shaw Decl., ¶ 2, Ex. A [September 22, 2021, Trial Transcript] at 23:23-
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26.) The insurance provision of the May 31, 2011, Easement Agreement is as follows:

5.2 Owners' Liability Insurance. Each Owner shall, severally, at all times maintain or cause to be maintained in full force and effect a commercial general liability insurance policy with respect to its Parcel with a financially responsible insurance company or companies, including coverage for claims of bodily injury, personal injury, property damage, and contractual liability. Such insurance shall be on an occurrence basis providing single limit coverage in an amount not less than \$2,000,000 per occurrence. Each Owner's commercial general policy with respect to the Easement Area shall name as an additional insured the other Owners and any secured lenders designated in writing by the other Owners (the "Designated Lenders"). Each Owner shall furnish to each other Owner and Designated Lender requesting the same in writing, evidence that the insurance referred to in this Section 5.2 is in full force and effect and that the premiums for such policy have been paid. Such insurance shall provide that the same may not be canceled, reduced below the required minimum or materially amended without at least thirty (30) days prior written notice being given by the insurer to all other Owners and to the Dedicated Lenders.

(Id. at ¶ 3, Ex. B [May 31, 2011, Easement Agreement] at § 5.2.) But, the parties also agreed "to operate in good faith . . . to be able to get that insurance requirement satisfied." (Shaw Decl., ¶ 2, Ex. A [September 22, 2021, Trial Transcript] at 28:13-15.) There is no deadline stated as to when the insurance provision will be obtained.

Defendants point out that Plaintiffs have failed to provide proof of insurance despite repeated requests from Mr. Farah's. In fact, Defendants assert that Mr. Thier has not obtained any insurance coverage since approximately 2017, if not earlier, that comports with the express requirements of Section 5.2. Moreover, Plaintiffs provide no evidence regarding any good faith efforts to obtain the policy as required under the terms of the settlement.

Plaintiffs indicate that Mr. Thier has obtained a \$2,000,000 personal liability policy on his property and that is all that is required under the settlement terms. (Shaw Decl., ¶ 5, Ex. D.) The Court disagrees.

Section 5.2 states: "Each Owner's commercial general policy with respect to the Easement Area shall name as an additional insured the other Owners and any secured lenders designated in writing by the other Owners (the "Designated Lenders")." The easement provides there will be an easement granted to Plaintiffs that provides for "vehicular and pedestrian, as well as equestrian rights but only as equestrian rights as [to] Strip 1, and usage for the Strip 1 for equestrian purposes is limited to 20 round trips per day" (Shaw Decl., ¶ 2, Ex. A [September 22, 2021, Trial Transcript] 23:15-20.)

There is no evidence that Plaintiffs named Defendants as an additional insured on the insurance policy, nor any evidence that the policy covers pedestrian, equestrian, or vehicular use.

Defendants argue that obtaining the insurance was a condition precedent to the granting of the equestrian easement, and that Mr.

Farah's counsel has been trying since October 2021 to obtain proof of the insurance coverage. "A condition precedent is either an act of a party that must be performed or an uncertain event that must happen before the contractual right accrues or the contractual duty arises." (Estate of Jones (2022) 82 Cal.App.5th 948, 953, internal citations omitted.) Conditions precedent may be created either expressly or impliedly. (Id.) "Courts will not interpret a provision as a condition precedent absent clear, unambiguous language requiring that construction." (Id.)

In this case, obtaining the insurance appears to be a condition precedent to the recording of the easement. It makes sense that Defendants as the grantor of the easement would require Mr. Thier to also maintain insurance coverage to avoid any potential liability for accidents that might occur thereon. Mr. Farah's counsel attempted on several occasions to obtain proof of such insurance, thus evidencing the importance of the insurance policy to this case. (See Declaration of Gregory Page.) Mr. Zfaty, counsel for Plaintiffs, also seemed to acknowledge the importance of the insurance policy. Mr. Zfaty stated on the record that:

"And so there's one additional piece, and we're going to have to probably ask the Court maybe for some assistance on this, but here's how this sorts out...once this case is dismissed, that we'll be able to go and get another policy, and to that end, insurance counsel, Mr. Prediado here in this case has even already reached out to get that underwriting process at least initiated. Maybe 'started' is not the right word so that carrier knows that we need to get this done. We're going to operate in good faith, everybody, to be able to get that insurance requirement satisfied. If we cannot, then we're also going to do is operate in good faith to try and resolve how we resolved it ourselves."

(Shaw Decl., ¶ 2, Ex. A [September 22, 2021, Trial Transcript] at 27:6-28:18.)

Although the parties acknowledged the importance of obtaining the insurance policy, there is no specific deadline provided pertaining when said policy must be obtained. Where a contract does not fix a time for performance, reasonable diligence and good faith must be required and it is the duty of the Court to hear evidence and therefrom fix a time which would be fair. (See e.g., Estate of Jones, supra, 82 Cal.App.5th at 953-955.)

Given that Mr. Zfaty specifically indicated that it would likely seek Court assistance on the insurance issue, the Court orders the following:

- The written settlement agreement is to include an insurance provision similar to Section 5.2 of the Easement Agreement. Given that the easement is for vehicular, pedestrian or equestrian use, the insurance policy should cover said use.
- The parties are to meet and confer and agree to a deadline in which Plaintiffs are to provide proof of insurance.

		Defendants will record the easement within a certain _____ days upon receipt of proof of the insurance.
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